National Transportation Safety Board
Aviation Accident Final Report

Location:	New Smyrna Beac, FL	**Accident Number:**	MIA08CA025
Date & Time:	12/06/2007, 1230 EST	**Registration:**	N130SX
Aircraft:	Messing Roy Sonex	**Aircraft Damage:**	Substantial
Defining Event:		**Injuries:**	1 None
Flight Conducted Under:	Part 91: General Aviation - Personal		

Analysis

According to the pilot, "the purpose of the flight was to test a new instrument and conduct test approaches and landings to check flying characteristics at slower approach speeds. Previous approaches at 70 miles per hour (MPH) [were] too fast. After practicing slow flight and entering a stall speed into new instrument I was cleared for a 5-mile straight in approach to runway 2. After "dragging in" for 5-miles I attained my test final approach speed of 60 mph. There was a tree in my glide path so I climbed over it but underestimated my sink rate (which was the purpose of the test flight) the right gear snagged a limb which jerked me into a right hand roll. I applied power, leveled the wings, and pointed [the] nose ahead as it hit the ground. There were no visible markings on the runway to indicate a displaced threshold. The reason for the displaced threshold is the tree. If the runway was properly marked, I am sure I would have been reminded at least a mile out or one-half out that there was a displaced threshold and avoided the incident."

Probable Cause and Findings

The National Transportation Safety Board determines the probable cause(s) of this accident to be: The pilot's failure to maintain altitude/clearance while on final approach for landing.

Findings

Occurrence #1: IN FLIGHT COLLISION WITH OBJECT
Phase of Operation: APPROACH - VFR PATTERN - FINAL APPROACH

Findings
1. OBJECT - TREE(S)
2. (C) ALTITUDE/CLEARANCE - NOT MAINTAINED - PILOT IN COMMAND

Occurrence #2: HARD LANDING
Phase of Operation: DESCENT - UNCONTROLLED

Factual Information

Pilot Information

Certificate:	Private	**Age:**	75, Male
Airplane Rating(s):	Single-engine Land	**Seat Occupied:**	Left
Other Aircraft Rating(s):	None	**Restraint Used:**	Seatbelt, Shoulder harness
Instrument Rating(s):	None	**Second Pilot Present:**	No
Instructor Rating(s):	None	**Toxicology Performed:**	No
Medical Certification:	Class 3 With Waivers/Limitations	**Last FAA Medical Exam:**	06/01/2006
Occupational Pilot:		**Last Flight Review or Equivalent:**	07/01/2004
Flight Time:	1343 hours (Total, all aircraft), 24 hours (Total, this make and model), 1343 hours (Pilot In Command, all aircraft), 10 hours (Last 90 days, all aircraft), 7 hours (Last 30 days, all aircraft), 1 hours (Last 24 hours, all aircraft)		

Aircraft and Owner/Operator Information

Aircraft Make:	Messing Roy	**Registration:**	N130SX
Model/Series:	Sonex	**Aircraft Category:**	Airplane
Year of Manufacture:		**Amateur Built:**	Yes
Airworthiness Certificate:	Experimental	**Serial Number:**	0013
Landing Gear Type:	Tailwheel	**Seats:**	2
Date/Type of Last Inspection:	05/01/2007, Condition	**Certified Max Gross Wt.:**	1200 lbs
Time Since Last Inspection:	8.6 Hours	**Engines:**	1 Reciprocating
Airframe Total Time:	49.4 Hours at time of accident	**Engine Manufacturer:**	Jabiru
ELT:	Installed, activated, did not aid in locating accident	**Engine Model/Series:**	3300A
Registered Owner:	Robert C. Abbaticchio	**Rated Power:**	145 hp
Operator:	Robert C. Abbaticchio	**Operating Certificate(s) Held:**	None

Meteorological Information and Flight Plan

Conditions at Accident Site:	Visual Conditions	**Condition of Light:**	Day
Observation Facility, Elevation:	KEVB	**Distance from Accident Site:**	
Observation Time:	1212	**Direction from Accident Site:**	
Lowest Cloud Condition:	Clear	**Visibility**	10 Miles
Lowest Ceiling:	None	**Visibility (RVR):**	
Wind Speed/Gusts:	5 knots /	**Turbulence Type Forecast/Actual:**	/
Wind Direction:	50°	**Turbulence Severity Forecast/Actual:**	/
Altimeter Setting:	30.16 inches Hg	**Temperature/Dew Point:**	20°C / 12°C
Precipitation and Obscuration:	No Obscuration; No Precipitation		
Departure Point:	New Smyrna Beac, FL (KEVB)	**Type of Flight Plan Filed:**	None
Destination:	New Smyrna Beac, FL (KEVB)	**Type of Clearance:**	None
Departure Time:	1205 EST	**Type of Airspace:**	

Airport Information

Airport:	New Smyrna Beach Municipal (KEVB)	**Runway Surface Type:**	Asphalt
Airport Elevation:	10 ft	**Runway Surface Condition:**	Dry
Runway Used:	2	**IFR Approach:**	None
Runway Length/Width:	4000 ft / 100 ft	**VFR Approach/Landing:**	Straight-in

Wreckage and Impact Information

Crew Injuries:	1 None	**Aircraft Damage:**	Substantial
Passenger Injuries:	N/A	**Aircraft Fire:**	None
Ground Injuries:	N/A	**Aircraft Explosion:**	None
Total Injuries:	1 None	**Latitude, Longitude:**	29.053333, -80.942778

Administrative Information

Investigator In Charge (IIC):	Butch Wilson	**Report Date:**	02/28/2008
Additional Participating Persons:	Frank Rios; Orlando FSDO; Orlando, FL		
Publish Date:			
Note:	This accident report documents the factual circumstances of this accident as described to the NTSB.		
Investigation Docket:	NTSB accident and incident dockets serve as permanent archival information for the NTSB's investigations. Dockets released prior to June 1, 2009 are publicly available from the NTSB's Record Management Division at pubinq@ntsb.gov, or at 800-877-6799. Dockets released after this date are available at http://dms.ntsb.gov/pubdms/.		

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The Independent Safety Board Act, as codified at 49 U.S.C. Section 1154(b), precludes the admission into evidence or use of any part of an NTSB report related to an incident or accident in a civil action for damages resulting from a matter mentioned in the report. A factual report that may be admissible under 49 U.S.C. § 1154(b) is available here.